

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C.

DOCKET NO. 25-24

RECEIVED
December 10, 2025

Office of the Secretary
Federal Maritime Commission

SOUTHERN INTERNATIONAL CO., LTD.

Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC

Respondent.

AMENDED FORMAL COMPLAINT

SECTION 1 – THE COMPLAINANT

1. The Complainant is **SOUTHERN INTERNATIONAL COMPANY LIMITED** (hereinafter referred to as "SIC"), a limited liability company duly organized and existing under the laws of Vietnam. SIC's principal place of business is located at **64 Truong Dinh, Xuan Hoa Ward, Ho Chi Minh City, Vietnam**. The legal representative of SIC is **Mr. Nguyen Tien Phuong**, holding the position of Director.
Phone: +84 775192912
Email: southern@southern.com.vn; nam@southern.com.vn; legal@southern.com.vn
2. SIC operates as an international freight forwarder and logistics service provider. SIC is licensed by and registered with the Federal Maritime Commission as an Ocean Transportation Intermediary (OTI), holding Organization Number **033811**.

SECTION 2 – THE RESPONDENT

3. The Respondent is **DAYNAMEZ GROUP OF COMPANIES LLC** (hereinafter referred to as “Daynamez” or “Respondent”), a limited liability company organized under the laws of the Commonwealth of Virginia, USA. Respondent’s principal place of business is located at **4000 Legato Road, Suite 1100, Fairfax, VA 22033, USA**. The representative of Daynamez is **Mr. Zia Kamali**, holding the position of Director/CEO.
Phone: +1 (571) 318-5515; +1 (571) 287-9964
Email: kamali@daynamez.com
4. Respondent engages in the business of providing ocean transportation and logistics services. Although Respondent describes itself as an “agent,” in its transactions with Complainant, Respondent acted functionally as a **Non-Vessel-Operating Common Carrier (NVOCC)** by holding itself out to provide transportation for compensation and assuming responsibility for the shipment of goods from Vietnam to the United States.
**Note: Please check Exhibit A*

SECTION 3 – JURISDICTION AND LEGAL AUTHORITY

5. This Complaint is filed pursuant to the Shipping Act of 1984, as amended, particularly under **46 U.S.C. Chapter 411**.
6. The Federal Maritime Commission (FMC) has subject matter jurisdiction over this proceeding under **46 U.S.C. § 41301** and **46 C.F.R. § 502.61(c)**.
7. The Commission has personal jurisdiction over the Respondent because, as stated in Paragraph 4 above, Respondent acted functionally as a common carrier subject to the Shipping Act. Specifically, Respondent:
 - a. Held itself out to SIC and the public as a provider of ocean transportation;
 - b. Assumed legal and financial responsibility for the transportation of cargo; and

- c. Utilized ocean common carriers to execute the movement of goods while acting as the shipper in relation to those carriers.

***Note:** Please check Exhibit B

8. This Amended Complaint alleges violations of the following statutory provisions:
 - a. **46 U.S.C. §40901 & §40902:** Unlicensed NVOCC operations are prohibited.
 - b. **46 U.S.C. §41102(a):** False or misleading representations in the sale or provision of transportation services.
 - c. **46 U.S.C. §41102(b):** Unfair or deceptive business practices.
 - d. **46 U.S.C. § 41102(c):** Failure to establish, observe, and enforce just and reasonable regulations and practices relating to receiving, handling, storing, or delivering property.

SECTION 4 – THE MATTER COMPLAINED OF (ALLEGED FACTS)

A. Formation of the relationship

9. Between October and December 2023, Mr. Kamali and Daynamez established a working relationship with SIC.
10. Respondent represented to SIC that it had strong ties with a major logistics partner in Rotterdam and close relationships with numerous shipping lines.
11. Based on these representations, Respondent promised to offer competitive market prices for shipments from Vietnam to the U.S. and Europe.
12. Relying on these assurances, SIC entered into an agreement titled "Agency Agreement" (No. SIC/DNM-011224) with Respondent on December 1, 2023.

B. Operational workflow and control

13. Under the operational workflow established by Respondent, SIC was responsible for sourcing customers in Vietnam and collecting sea freight charges.

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14. SIC was required to transfer the collected sea freight to Respondent within five (5) working days of the vessel's departure from the Vietnamese port.
15. Respondent assumed the sole responsibility for making payments to the downstream logistics partners and ocean carriers.
16. In September 2024, Respondent designated specific agents, including Cargo Login LLC, Mahasagar Forwarders Pvt Ltd, and Kargosmart Global USA Inc., as its "booking partners."
17. While Respondent claimed these entities were agents, the actual issuance of bookings and Bills of Lading was carried out by Vietnamese agents: Super Cargo Service Co., Ltd. ("Super Cargo Vietnam") and Kargosmart Global Vietnam Co., Ltd. ("Kargosmart Vietnam").

C. Performance and breach

18. SIC faithfully performed its obligations, collecting funds from customers and promptly transferring the agreed-upon sea freight to Respondent.
19. In several instances, SIC advanced its own funds to Respondent to ensure adherence to payment terms before receiving payment from customers.
20. Despite receiving full payment from SIC, Respondent frequently delayed payments to its partners, causing delivery delays.
21. Following instructions from Respondent, SIC was often forced to advance additional sea freight payments directly to Respondent's partners (Super Cargo Vietnam and Kargosmart Vietnam) to release cargo.

D. Cessation of payments and misappropriation

22. In mid-October 2024, Respondent informed SIC that it would cease making payments to booking parties, citing a depletion of operating funds.
23. This cessation occurred despite Respondent having already received \$2,415,650.87 from SIC specifically designated for the sea freight of 558 containers (detailed in the list attached to the Formal Complaint).

24. Respondent instructed its partners to direct all remaining payment responsibilities to SIC, effectively shifting the debt it had already collected back to SIC.
25. As a direct result, numerous shipments to the U.S. and Europe were detained, and cargo was held by the booking parties.

E. Specific incidents of damages

26. The Super Cargo Vietnam Incident: On October 9, 2024, following Respondent's instructions, SIC paid \$149,990 directly to Super Cargo Vietnam on behalf of Daynamez.
27. This payment was intended for the sea freight of 43 containers (16 B/Ls).
28. Despite receiving this payment, Super Cargo Vietnam failed to release the containers and subsequently demanded additional inflated payments directly from consignees. Super Cargo Vietnam continues to hold the \$149,990.
29. The Kargosmart Vietnam Incident: On October 14, 2024, Respondent instructed SIC to deposit \$50,000 with Kargosmart Vietnam to secure an original Bill of Lading (Shipment YMJAM493304131).
30. Respondent claimed its banking system was down and requested this advance.
31. Kargosmart Vietnam has retained this deposit without resolving the release of the Bill of Lading or offsetting the debt.

SECTION 5 – CAUSATION

32. The alleged illegal acts of the Respondent have directly caused injury to the Complainant.
33. Respondent holds itself out as an NVOCC, accepts freight charges, controls HBLs process, or arranges ocean transportation **without FMC registration**, it violates **46 U.S.C. §40901 & §40902**.
34. Respondent claims to have "major partners in Rotterdam who can purchase

bookings at cheap prices," when in reality they have no such partners, have violated **46 U.S.C. §41102(a)**.

35. Respondent's acceptance of funds with the knowledge or intent that it would not pay the underlying carriers constitutes an unjust or unfair device or means to obtain transportation in violation of **46 U.S.C. § 41102(b)**.
36. Respondent's failure to remit payments to carriers, despite having collected the freight funds from SIC, constitutes an unjust and unreasonable practice in violation of **46 U.S.C. § 41102(c)**.
37. These actions directly resulted in the detention of cargo, the loss of funds paid by SIC, and severe damage to SIC's business reputation.

SECTION 6 – DAMAGES

38. SIC has incurred direct financial damages totaling **\$2,615,640.87 USD**.
39. This total comprises:
 - a. \$2,415,650.87 in freight payments for 558 containers, fully transferred by SIC to Respondent, which Respondent failed to pay to the relevant carriers.
 - b. \$149,990.00 paid by SIC to Super Cargo Vietnam on Respondent's behalf, which was never returned or credited.
 - c. \$50,000.00 deposited to Kargosmart Vietnam on Respondent's behalf, which has been retained without resolution.
40. Additionally, SIC claims reparations for consequential damages including loss of goodwill, reputational harm, and costs incurred by customers to release cargo.

SECTION 7 – REQUEST FOR RELIEF

WHEREFORE, Complainant requests that the Commission:

1. Require Respondent to answer the charges made herein;

2. Order Respondent to cease and desist from violations of the Shipping Act;
3. Order Respondent to establish and observe lawful and reasonable practices;
4. Order Respondent to pay Complainant reparations for the unlawful conduct in the sum of **\$2,615,640.87 USD**, plus interest, attorney's fees, and costs; and
5. Grant such further relief as the Commission determines to be proper.

SECTION 8 – REQUEST FOR ORAL HEARING

Complainant represents that an oral hearing is not requested in this matter and submits this complaint for adjudication on the written record.

Respectfully submitted,



Nguyễn Tiến Phương
Giám Đốc

Nguyễn Tiến Phương
Director
Southern International Company Limited
64 Truong Dinh, Xuan Hoa Ward,
Ho Chi Minh City, Vietnam.

Date: December 10th, 2025

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VERIFICATION

I, **Nguyen Tien Phuong**, am the Director of Southern International Company Limited, the Complainant in this proceeding.

I have read the foregoing Amended Formal Complaint and know the contents thereof. The facts stated therein are true and correct to the best of my knowledge, information, and belief.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on: December 10th, 2025

At: Ho Chi Minh City, Vietnam



Giám Đốc

Nguyen Tien Phuong

Director

Southern International Company Limited

Nguyễn Tiến Phương

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CERTIFICATE OF SERVICE

I hereby certify that on this 10th day of December, 2025, a true and correct copy of the foregoing **"AMENDED FORMAL COMPLAINT"** was served by electronic mail upon the counsel for Respondent:

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Respectfully submitted,



Giám Đốc

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